

May 26, 2026 hearing. The February 4, 2026 Order only lists Defendant RV Retailer Idaho, LLC on the front page and a conformed copy was provided to Defendant RV Retailer Idaho, LLC's fax filing agency. Notice of Entry of Order has not been filed. A proof of service for the Order has not been filed. With no Opposition and no Proof of Service reflecting that Plaintiff was properly noticed of today's hearing date, the matter cannot proceed to hearing. **An appearance is necessary on today's calendar to discuss whether Plaintiff was provided notice of today's hearing and if so, how long Defendants will need to file the Proof of Service.**

WILSON VS. FORD MOTOR COMPANY, ET AL.

CASE NUMBER: 24CV-0205243

Tentative Ruling on Motion for Summary Adjudication: Defendant Ford Motor Company ("Ford") moves for summary adjudication on five separate issues related to three of Plaintiff's causes of action. Plaintiff Sarah Wilson opposes the motion.

The specific issues presented for summary adjudication (as argued by Defendant) are:

1. Plaintiff cannot establish that her second cause of action for violation of Civil Code § 1793.2(B) because she cannot establish that any repair took longer than 30 days to complete.
2. Plaintiff cannot establish her third cause of action for violation of Civil Code § 1793.2(A)(3) because she cannot establish that Ford failed to make available to authorized service and repair facilities sufficient services literature and replacement parts.
3. Plaintiff cannot establish her fifth cause of action for fraudulent inducement-concealment against Ford because Plaintiff cannot establish that Ford had knowledge of a defect at the time of sale.
4. Plaintiff cannot establish her fifth cause of action because Plaintiff cannot establish that Ford had any transactional relationship triggering any duty to disclose a known defect at the time of sale.
5. Plaintiff cannot establish her fifth cause of action because it is barred by the economic loss rule.

Evidentiary Objections. CRC 3.1354(b) requires that "[a]ll written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion. Objections to specific evidence must be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement." Defendant has not submitted objections separately as required by CRC 3.1354(b). Additionally, the objections are being made in the separate statement to the purported undisputed facts but have not been made to specific evidence. The objections are overruled for noncompliance with CRC 3.1354(b).

Merits. "A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." CCP § 437c(f)(2).

A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.

CCP § 437c(f)(1).

A defendant or cross-defendant has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.

Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

CCP § 437c(p)(2).

Issue 1. *Plaintiff cannot establish that her second cause of action for violation of Civil Code § 1793.2(B) because she cannot establish that any repair took longer than 30 days to complete.*

Civil Code § 1793.2(b) provides that repairs must be commenced within a “reasonable time,” and the goods shall be serviced or repaired to conform to the applicable warranties within 30 days. Defendant argues that Plaintiff cannot establish that any repair took more than 30 days to complete. Defendant fails to point to any undisputed facts applicable to this allegation. Defendant did provide evidence in form of repair orders that show no single repair took more than 30 days to complete. Defendant has met its initial burden that there is no triable issue of fact regarding violation of Civil Code § 1793.2(b). The burden thus shifts to Plaintiff to present evidence of a disputed material issue of fact.

While Plaintiff argues that Defendants did not “provide any admissible evidence addressing that it failed to commence repairs within a reasonable time or that Defendant’s authorized repair facilities actually fixed all nonconformities to applicable warranties”, Plaintiff has failed to affirmatively meet its burden to present any evidence that a triable issue of fact exists regarding violation of Civil Code § 1793.2(b). Summary Adjudication is therefore **GRANTED** as to Issue 1.

Issue 2. *Plaintiff cannot establish her third cause of action for violation of Civil Code § 1793.2(A)(3) because she cannot establish that Ford failed to make available to authorized service and repair facilities sufficient services literature and replacement parts.*

Civil Code § 1793.2(a)(3) states that every manufacturer who has made an express warranty shall “[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” Defendant argues that Plaintiff has failed to provide any facts or evidence to support that Defendant failed to comply with Civil Code § 1793.2(a)(3). The closest material fact provided by Defendant was number 19 of Defendant’s separate statement, which states that Plaintiff directed Defendant to the Complaint and page 28 of her document production when asked to “IDENTIFY all facts that support YOUR contention that “Defendant FMC’s failure to comply with its obligations under Civil Code Section 1793.2(a)(3) was willful, in that Defendant FMC knew of its obligation to provide literature and replacement parts sufficient to allow its repair facilities to effect repairs during the warranty period, yet Defendant FMC failed to take any action to correct its failure to comply with the law” as alleged in Paragraph 50 of YOUR COMPLAINT.”

Neither “Willfulness” nor “knowledge” of the obligation to supply sufficient literature and replacement parts are elements of proper compliance with Civil Code § 1793.2(a)(3). These assertions are not sufficient to show that Plaintiff cannot establish that Defendant failed to comply with Civil Code § 1793.2(a)(3). Defendant has failed to provide evidence that shows compliance with the requirements. Defendant has not met its initial burden that a triable issue of fact does not exist regarding violation of Civil Code § 1793.2(1)(3). Summary Adjudication is **DENIED** as to Issue 2.

Issues 3-5 regarding the Fifth Cause of Action for Fraudulent Inducement-Concealment. Fraud in the inducement occurs when the promisor knows what he is signing but his consent is induced by fraud, mutual assent is present

and a contract is formed, which, by reason of the fraud, is voidable. *Duffens v. Valenti* (2008) 161 Cal. App. 4th 434, 449. The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]. *Hambrick v. Healthcare Partners Med. Grp., Inc.* (2015) 238 Cal. App. 4th 124, 162.

Issue 3. Plaintiff cannot establish her fifth cause of action for fraudulent inducement-concealment against Ford because Plaintiff cannot establish that Ford had knowledge of a defect at the time of sale.

Defendant argues that Plaintiff cannot establish that Defendant was aware of the alleged defect at the time of sale. Defendant provided evidence in the form of Plaintiff's deposition that shows when asked, "Do you have any information to suggest that Ford probably knew of issues?" Plaintiff replied, "No. I have no information." Defendant has met its initial burden that there is no triable fact as to Defendant's prior knowledge of the alleged defect. The burden thus shifts to Plaintiff to present evidence of a disputed material issue of fact.

Plaintiff's counsel provided a declaration and evidence regarding Defendant's prior knowledge of the alleged defect including Technical Service Bulletins dating before the sale of the vehicle and email exchanges between alleged Ford employees regarding issues related to the 10R80 transmissions. Plaintiff has established a triable issue of fact regarding Defendant's prior knowledge of the alleged defect. Summary Adjudication is **DENIED** as to Issue 3.

Issue 4. Plaintiff cannot establish her fifth cause of action because Plaintiff cannot establish that Ford had any transactional relationship triggering any duty to disclose a known defect at the time of sale.

Defendant argues that dealerships are not agents of the manufacturer, therefore no transactional relationship exists between Plaintiff and Defendant Ford giving rise to a duty to disclose. In *Dhital v. Nissan North America, Inc.* (2022) 84 Cal. App. 5th 828, the First District Court of Appeal found plaintiffs sufficiently alleged a transactional relationship with Nissan by alleging they purchased a vehicle from a Nissan dealership, with an express warranty backed by Nissan, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. Here, Defendant has provided evidence in the form of a Retail Installment Sale Contract that shows Plaintiff purchased the subject vehicle from Crown Ford, an authorized Ford dealership. The Complaint shows that the purchase was supported by an express warranty backed by Defendant Ford. Under *Dhital*, it is undisputed that a transactional relationship exists. Defendant has not met its initial burden that a triable issue of fact regarding the existence of a transactional relationship. Summary Adjudication is **DENIED** as to Issue 4.

Issue 5. Plaintiff cannot establish her fifth cause of action because it is barred by the economic loss rule.

Defendant argues that the cause of action for fraudulent inducement-concealment is barred by the economic loss rule. Concerning contracts, "[i]n general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905. However, "[t]ort damages have been permitted in contract cases where a breach of duty directly causes physical injury [citation]; for breach of the covenant of good faith and fair dealing in insurance contracts [citation]; for wrongful discharge in violation of fundamental public policy [citation]; or where the contract was fraudulently induced. [Citation.]" *Robinson Helicopter Co., Inc. v. Dana Corp.* (204) 34 Cal.4th 979.

The *Robinson* court specifically noted an exception for claim in which one is fraudulently induced into entering

a contract, which is specifically different from fraudulent performance of a contract. This was further affirmed in *Dhital v. Nissan North America*, supra, 84 Cal.App.5th 828, which determined that “[f]raudulent inducement claims fall within an exception to the economic loss rule recognized by our Supreme Court.” The facts of *Dhital* are approximate to the facts presented in this case, in which Plaintiff’s claimed they were fraudulently induced into entering a contract through Nissan’s fraudulent concealment of an alleged transmission defect. Here, Plaintiff claims that entry into the contract was fraudulently induced by Defendant’s concealment of an alleged transmission defect, which falls squarely within the exception to the economic loss rule. Defendant has failed to meet its initial burden. Summary Adjudication is **DENIED** as to Issue 5.

In summary, summary adjudication is **DENIED** as to Issues 2, 3, 4 and 5. Summary adjudication is **GRANTED** as to Issue 1. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant shall prepare the Order.

9:00 a.m. – Review Hearings

BAKER VS. TERRILL

CASE NUMBER: 25CV-0207907

This matter is on calendar for review regarding status of counsel. While a Motion to be Relieved was granted on April 27, 2026, Plaintiff’s counsel has not filed a Notice of Entry of Order and is therefore not relieved. Plaintiff’s counsel was ordered to provide notice of today’s hearing to all parties. There is nothing in the file to indicate that Plaintiff’s counsel did so. **An appearance is necessary on today’s calendar.**

CITIBANK, N.A. VS. GARNICA, JR

CASE NUMBER: 24CVG-00889

This matter is on calendar for review regarding status of CCP § 664.6 dismissal. Plaintiff filed a status statement informing the Court that an agreement has been reached and a stipulation is being distributed to all parties for signature. Plaintiff requests 90 days to file the stipulation. This is essentially the same information provided the last time Plaintiff requested a continuance. The matter is continued to **Monday, August 24, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The parties are ordered to take the necessary steps to close the court file, i.e. a dismissal with a CCP § 664.6 retention. If the matter has not been dismissed prior to the next hearing, the Court orders Plaintiff to file a status statement explaining the delay at least five court days prior to the hearing. **No appearance is necessary on today’s calendar.**

EL RIO ESTATES LLC VS. JOHNSON-SARGENT, ET AL.

CASE NUMBER: 26CVG-00088

This matter is on calendar for status of accounting. The Inventory and Accounting have been filed pursuant to California Civil Code § 798.61. The clerk is directed to close the file. **No appearance is necessary on today’s calendar.**

KNIGHT VS. HIGHWAY SPECIALTY COMPANY INC

CASE NUMBER: 24CV-0206254

This matter is on calendar for status of arbitration. Plaintiff previously informed the Court that Plaintiff intends to file a demand for arbitration. At the last hearing on April 27, 2026, both parties were ordered to file a status statement at least five days prior to today’s hearing. Nothing has been filed since the last hearing. **An appearance is necessary on today’s calendar.**